

Smt T H Chandrika W/O G Narasimhamurthy vs Sri Narasimhamurthy S/O D Gangappa on 3 June, 2011

Author: K.L.Manjunath

Bench: K.L.Manjunath

IN THE HIGH COURT OF KARNATAKA AT BANGALORE
DATES THIS THE 5th DAY OF JUNE, 2011, AT
BEFORE MR. JUSTICE K.L. MANJUNATH
THE HON'BLE Mr. JUSTICE K.L. MANJUNATH

WRIT PETITION No. 705 of 2011; (Gangappa vs Narasimhamurthy)

BETWEEN: k :T b . a

T.H.Chandrika w/o G.Narasimhamurthy
Murthy, 39 years, C/o M.P.Rajamma; V?
D.No.2486, II Main, Siddaganga ""
Extension, Tumkur, a_ 1"" "" PETITIONER

(By Advocate Smt. H. B. Shivacharya)

AND:

Narasimhamurthy S/O D. Gangappa,
41 years; No. 4, 4th Main,
Bangalore-94; f, "« *, - .. RESPONDENT

(By Advocate AM/é SSP Lex Scientia) * * \$hggt;tion is filed under Arts. 226 & 227 of the Constitution of India to set aside the order dated 15.2.2011 on I.A. IV passed by the Civil Judge (Sr. Dn.), Tumkur. The respondent is to enhance the maintenance amount from Rs. 15,000/- to Rs. 15,000/- per month to be paid to the petitioner by the respondent.

This Petition is coming on for preliminary hearing in B-Group this day, the Court mentions the following: T."

Petitioner being not satisfied with the maintenance awarded by the Civil Judge (Sr. Dn.) Tumkur in MC 1/2008 under Sec. 24 of the Hindu Marriage Act, present Writ Petition is filed. 2 - Respondent: 7; of the petitioner; Qm Rgiheieeexiegerggs solemnized on 5.2.1999. Ede ef wedlock they have two children. The child is with the petitioner and another child with the respondent. A divorce petition is filed on the ground of cruelty and extortion. By the respondent's husband Respondent M is working as a bank manager. His gross salary is Rs. 25,000/- and his home salary is about Rs. 12,000/- * Erial court has awarded a sum of Rs. 15,000/- as maintenance to the petitioner and her daughter. Being not satisfied with the same, present petition is filed.

3. Heard the counsel for both the parties.

4. Gross salary" of 'the respondent' is not in dispute. Take home salary is Rs.12,000/- per month. About Rs.17,000/- per month is being deducted of the salary payable to the respondent the entire Rs.17,000/- cannot be set off as statutory. If expenses are made towards deduction, "

provision of fund insurance and on other schemes, respondent would be the beneficiary. But based on the fact salary "this court cannot fix the maintenance payable to the petitioner' and. her daughter "she is studying in a school. Considering the status of a bank manager and the cost of living this court is of the opinion that the respondent has to be directed "to pay monthly maintenance of Re.500/- to the petitioner and her daughter. Accordingly, order of the trial court is modified. Petitioner is hereby entitled to joint maintenance at the rate of Rs.6000/- per month from the date of filing of application under Sec. 24 of the Marriage Act; 1955." WE7 " " * * ' S;

5. Accordingly, this petition is allowed. Order of the trial court is modified. u/s 21